

Chapter 5 Regulations Applying to all Zones

5.10 General Regulations

5.10.1 General

5.10.1.10 Interpretation

(1) Application of Chapter

The regulations in Chapter 5, "Regulations Applying to All Zones", apply to all lands, uses, **buildings** and **structures**.

(2) Multiple Uses On a Lot

If a **lot** is used for more than one permitted use, the regulations which apply to each permitted use on the **lot** are applied as if each permitted use exists and operates independently of the other.

(3) Specific Uses

If the zone regulation identifies a use as being a permitted use with conditions, and the condition requires compliance with the specific use regulations in Chapter 150, the specific use must comply with the regulations for the zone in which it is located and the regulations in Chapter 150.

(4) Substantial Demolition

A **building** is not **lawfully existing** if 50% or more of the **main walls** of the first **storey**, or above, are removed or replaced.

5.10.1.30 Restrictions

(1) Use of Unzoned lands

Lands that are on the Zoning By-law Map as lands to which this By-law applies, but are not identified on the Zoning By-law Map as being in a zone, may only be used for open space and may not have a **building** or **structure**.

(2) Habitation in a Vehicle

A **vehicle** may not be used for living accommodation.

(3) Dwelling Unit Below Grade

A **dwelling unit** may not be entirely below:

- (A) **established grade** in the Residential Zone category and Residential Apartment Zone category; and
- (B) **average grade** in any other zone that permits a **dwelling unit**.

5.10.20 Permitted Uses

5.10.20.1 General

(1) City Services

The following are permitted in any zone, if owned or operated by or for, or under the authority of, the City of Toronto or any agency of the City of Toronto:

- (A) facilities for public or emergency services, other than **municipal shelters**;
- (B) Municipally owned **public parking**; and
- (C) on-location filming.

(2) Ancillary Uses

Uses that are **ancillary** to a permitted use on the same **lot**, are permitted if they comply with the regulations of the zone in which the **lot** is located.

5.10.30 Lot Requirements

5.10.30.1 General

(1) Availability of Services

No land may be used and no **building** or **structure** may be erected or used on the land unless:

- (A) the land abuts an existing **street**, or is connected to an existing **street** by a **street** or **streets**, constructed to a minimum base curb and base asphalt or concrete; and
- (B) all Municipal water mains and Municipal sewers, and their appurtenances, are installed to a **lot line** of the property and are operational.

(2) Fronting on a Street

Except for a Parcel of Tied Land, a **building** or **structure** may not be erected or used, on any **lot** that does not abut a **street**. For the purpose of this regulation, a "Parcel of Tied Land" has the meaning given to it in section 24 of Ontario Regulation 49/01 made under the Condominium Act, 1998, S.O. 1998, c.19, as amended. This regulation does not apply to a **lot** separated from a **street** by a 0.3 metre reserve where **vehicle** access to the **lot** is available from a **lane**.

(3) Lot with Reserve Along Street - No Access

If a **lot** is separated from a **street** by a 0.3 metre reserve and the **lot** does not abut another **street**, the **lot line** abutting the 0.3 metre reserve is the **front lot line** for the purpose of establishing **lot** orientation. This regulation does not deem the **lot** to abut a **street** from which it is separated by a 0.3 metre reserve.

5.10.30.20 Lot Frontage

(1) Designated Front Lot Line for Corner Lots

The **lot line** or contiguous **lot lines** separating a **corner lot** from one **street** or one **street** segment may be selected as the **front lot line**, and despite the definition of **front lot line**, the **lot line** or contiguous **lot lines** separating the **corner lot** from another **street** or **street** segment is not a **front lot line**.

(2) Designated Front Lot Line for Through Lots

On a **through lot**, a **lot line** abutting a **street** may be selected as the **front lot line** if that **lot line** is not separated from the **street** by a 0.3 metre reserve.

5.10.30.40 Lot Coverage

(1) Ramp or Elevating Device Providing Barrier Free Access

A pedestrian access ramp or elevating device providing "barrier-free" access to a **building** or **structure** is not included in the calculation of **lot coverage**.

5.10.40 Principal Building Requirements

5.10.40.1 General

(1) Non-Complying Building or Structure Damaged by Acts Beyond Owner's Control

If a **lawfully existing building** or **structure** does not comply with the **building** regulations for the zone in which it is located and it has been damaged or destroyed as a result of matters beyond the control of the owner, it may be reconstructed or repaired if there is no increase in the noncompliance.

(2) Non-Complying Building or Structure - Restoration to a Safe Condition

If a **lawfully existing building** or **structure** does not comply with the **building** regulations for the zone in which it is located and it has been determined to be in an unsafe condition by the City of Toronto, the unsafe portion of the **building** or **structure** may be repaired or restored to a safe condition if there is no increase in the noncompliance; and the restoration or repair will not alter the location of any part of the **building** or **structure** unless it is authorized by a Section 45 Planning Act minor variance.

(3) Location Restriction Below a Shoreline Hazard Limit or Stable Top-of-Bank

On lands under the jurisdiction of the Toronto and Region Conservation Authority pursuant to the Conservation Authorities Act, R.S.O 1990 c. C.27, as amended, other than in the Open Space Zone category, if the Toronto and Region Conservation Authority determines that a shoreline hazard limit or a stable top-of-bank crosses a **lot**, no **building** or **structure** may be located on the portion of the **lot** below that shoreline hazard limit or stable top-of-bank, unless it is:

- (A) an **ancillary building** or **structure** on a **lot** in the Residential Zone category; or
- (B) for the purpose of conservation works, **public utilities**, or **transportation uses**.

(4) Lawfully Existing Buildings Not Complying With Location Restriction Below a Shoreline Hazard Limit or Stable Top-of-Bank

If a **lawfully existing building** or **structure** is on a portion of a **lot** below a shoreline hazard limit or stable top-of-bank, that **lawfully existing building** or **structure** is permitted in that location, and regulation 5.10.40.1(3) does not apply to prevent an alteration to that **lawfully existing building** or **structure**, or its replacement in the same location, if its **lawful** height, length or width is not increased.

5.10.40.10 Height

(1) Height of Buildings and Structures - Flight Path

If a **lot** is located under a flight path regulated by the Government of Canada, the permitted maximum height of a **building** or **structure** is the lower of the maximum height permitted by:

- (A) this By-law; or
- (B) the Government of Canada.

5.10.40.40 Floor Area

(1) Floor Area Calculation Restriction Below a Shoreline Hazard Limit or Stable Top-of-Bank

On lands under the jurisdiction of the Toronto and Region Conservation Authority pursuant to the Conservation Authorities Act, R.S.O 1990 c. C.27, as amended, other than in the Open Space Zone category, if the Toronto and Region Conservation Authority determines that a shoreline hazard limit or a stable top-of-bank crosses a **lot**, the portion of the **lot** below that shoreline hazard limit or stable top-of-bank is not included in the calculation of the floor space index for that **lot**.

(2) Lawfully Existing Buildings Not Complying With Floor Area Calculation Restriction Below a Shoreline Hazard Limit or Stable Top-of-Bank

Regulation 5.10.40.40(1) does not apply to prevent the alteration of a **lawfully existing building** or **structure**, or its replacement, if the floor space index resulting from those **lawfully existing buildings** or **structures** is not increased.

5.10.40.70 Setbacks

(1) Compliance with Required Building Setback

No part of a **building** or **structure** may be in a required minimum **building setback**.

(2) Parts of a Building to which a Required Building Setback Applies

Building setback requirements apply only to all parts of a **building** or **structure** above ground. [By-law: OMB PL130592]

(3) Application of Building Setbacks for a Building Located on More Than One Lot

If a **building** is located on more than one **lot**, the required minimum **building setbacks** are measured from the **lot lines** forming the boundary of the combined **lots** to the **main walls** of the **building**.

(4) Minimum Building Setbacks for a Use Not Located Within a Building or Structure

A use that is not located inside a **building** or **structure** must comply with the required minimum **building setbacks** for a **building** on the **lot**, unless:

- (A) it is **landscaping** or a horticultural use;
- (B) it is a **park** or an outdoor **recreation use**; or
- (C) a regulation of this By-law permits an alternative minimum **building setback**.

(5) Rear Yard Building Setback for Triangular Shaped Lots

If a **lot** fronts on a **street** and has no **rear lot line**, the **rear yard** required minimum **building setback** is measured as a radius from the point where the **side lot lines** meet.

(6) Setback from the Shoreline Hazard Limit or Stable Top-of-Bank

On lands under the jurisdiction of the Toronto and Region Conservation Authority pursuant to the Conservation Authorities Act, R.S.O 1990 c. C.27, as amended, other than in the Open Space Zone category, if the Toronto and Region Conservation Authority determines that a shoreline hazard limit or a stable top-of-bank crosses a **lot**, a **building** or **structure** on that **lot** must be set back a minimum of 10 metres from that shoreline hazard limit or stable top-of-bank, unless it is:

- (A) an **ancillary building** or **structure** on a **lot** in the Residential Zone category; or
- (B) for the purpose of conservation works, **public utilities**, or **transportation uses**.

(7) Lawfully Existing Buildings Not Complying With Setback from a Shoreline Hazard Limit or Stable Top-of-Bank

If a **lawfully existing building** or **structure** is closer to a shoreline hazard limit or stable top-of-bank than the required minimum **building setback**, that **lawfully existing building** or **structure** is permitted in that location, and regulation 5.10.40.70(6) does not apply to prevent an alteration to that **lawfully existing building** or **structure**, or its replacement on the same **lot**, if the alteration or replacement is no closer to the shoreline hazard limit or stable top-of-bank than the existing **building setback** at every point along the **main walls** of the **lawfully existing building** or **structure**.

5.10.40.80 Separation

(1) Separation Distance from the Shoreline Hazard Limit or Stable Top-of-Bank

On lands under the jurisdiction of the Toronto and Region Conservation Authority pursuant to the Conservation Authorities Act, R.S.O 1990 c. C.27, as amended, other than in the Open Space Zone category, a **building** or **structure** on a **lot** may be no closer than 10 metres from a shoreline hazard limit or a stable top-of-bank not on that **lot**, as determined by the Toronto and Region Conservation Authority, unless it is:

- (A) an **ancillary building** or **structure** on a **lot** in the Residential Zone category; or
- (B) for the purpose of conservation works, **public utilities**, or **transportation uses**.

(2) Lawfully Existing Buildings Not Complying With Separation Distance from a Shoreline Hazard Limit or Stable Top-of-Bank

If a **lawfully existing building** or **structure** is located closer to a shoreline hazard limit or stable top-of-bank than the separation distance required by this By-law, that **lawfully existing building** or **structure** is permitted in that location, and regulation 5.10.40.80(1) does not apply to prevent an alteration to that **lawfully existing building** or **structure**, or its replacement on the same **lot**, if the alteration or replacement is no closer to the shoreline hazard limit or stable top-of-bank than the existing distance at every point along the **main walls** of the **lawfully existing building** or **structure**.

5.10.50 Yards

5.10.50.10 Landscaping

(1) Ramp or Elevating Device Providing Barrier Free Access

The area covered by an exterior pedestrian access ramp or exterior elevating device that provides "barrier-free" access from the ground to the **first floor** of the **building**, is **landscaping**.

5.10.60 Ancillary Buildings and Structures

5.10.60.1 General

(1) Ancillary Buildings and Structures

Buildings and **structures** that are **ancillary** to a permitted use on the same **lot**, are permitted if they comply with the regulations of the zone in which the **lot** is located.

(2) Satellite Dish Not Mounted on a Building

A satellite dish not mounted on a **building**, or a **structure**:

- (A) may not be in a **front yard** or a **side yard** that abuts a **street**;
- (B) may be no closer to a **side lot line** or **rear lot line** than a distance equal to the greater of:
 - (i) the diameter or largest width of the satellite dish; and
 - (ii) if it is 3.0 metres or more from the **building**, half the height of the **structure**; or
 - (iii) if it is less than 3.0 metres from the **building**, the required minimum **building setback**; and
- (C) if on a **lot** that is adjacent to a **lot** in the Residential Zone category, the permitted maximum height of the satellite dish is 5.0 metres, measured from the ground at its base to the top of its uppermost element.

(3) Satellite Dish on the Roof of a Building

If a satellite dish is mounted on the roof of a **building**, it may be no closer to any **main wall** than the distance equal to the largest radius of the satellite dish.

(4) Satellite Dish on a Building but Not the Roof

If a satellite dish is located on a **building** other than on the roof, it must comply with the required minimum **building setbacks**.

5.10.75 Energy Regulations

5.10.75.1 General

(1) Meaning of Distribution

For the purpose of the Clause 5.10.75.1, the term "distribution" means the delivery of energy derived from **renewable energy** or **cogeneration energy**, to a distribution network connected to the **lot**.

(2) Relation of By-law to Green Energy Act

Despite any of the provisions of this By-law, the regulations in this By-law do not apply to:

- (A) any "renewable energy undertaking", as defined in the Planning Act, respecting which the Planning Act stipulates that a zoning by-law does not apply;
- (B) any "renewable energy project", "renewable energy source" or "renewable energy testing project", as defined in the Green Energy Act, 2009, S.O. 2009, Chapter 12 Schedule A, as amended, which is designated by regulation under the Green Energy Act and for which the Green Energy Act stipulates that restrictions established by a Municipal by-law are inoperative; and
- (C) any goods, services and technologies designated by regulation under the Green Energy Act, 2009, S.O. 2009, Chapter 12 Schedule A, as amended, and for which the Green Energy Act stipulates that restrictions established by a Municipal by-law are inoperative.

(3) Distribution of Energy From Renewable Energy and Cogeneration Energy Sources

The distribution of energy derived from **renewable energy** sources and **cogeneration energy** sources, using wires or pipes is permitted in all zones of this By-law if:

- (A) the distribution of the **renewable energy** and **cogeneration energy** produced complies with all Municipal, Provincial and Federal, by-laws, statutes and regulations; and
- (B) the distribution of **renewable energy** and **cogeneration energy** is carried out in compliance with all other regulations of this By-law.

5.10.175 Fence

5.10.175.1 General

(1) Fences

A fence required by this By-law must comply with the regulations of Chapter 447, Fences, of the City of Toronto Municipal Code, as amended, and any other Code or by-law provision pertaining to fences.

(2) Fences - Exemption from Building Setback Requirements

A fence is not required to comply with the required minimum **building setbacks**.